

Defendant Saig

The second and sixth causes of action are asserted against Saig. It is alleged that she knowingly presented Plaintiff with a fabricated and defamatory evaluation in February 2024 that was filled with false accusations that Saig knew were inaccurate. (SAC, ¶¶ 51 and 80.) It is alleged that Saig improperly issued a written reprimand based on the fabricated claims asserted in the February 2024 evaluation. (*Ibid.*) The SAC also alleges that Saig intentionally required Plaintiff to turn in weekly lesson plans and attend peer meetings to teach him how to teach in an attempt to destroy his professional reputation. (*Id.* at ¶¶ 19 and 20.) She also allegedly assigned him an unfavorable teaching schedule with no breaks, knowing that this would be hard on an older teacher. (*Id.*)

Like with Zink, Moving Defendants only addresses one of the allegedly wrongful conduct on the part of Saig asserted in the SAC. They also fail to address whether these remaining arguments are sufficient to establish malice, oppression, or fraud. As such, Saig has not met her initial burden as to the request for punitive damages. DENIED.

Government Code § 818

Moving Defendants also contend that the request for punitive damages should be denied due to Government Code § 818. Under Government Code § 818, “[n]otwithstanding any other provision of law, a public entity is not liable for damages awarded under Section 3294 of the Civil Code or other damages imposed primarily for the sake of example and by way of punishing the defendant.” Moving Defendants argue that they cannot be liable for punitive damages because the actions at issue were done within the course and scope of their employment. They assert that the imposition of punitive damages would violate Government Code § 818. This assertion is incorrect. Government Code § 818 applies to government entities not employees of government entities.

The liability of public entities and the liability of public employees are separately and distinctly provided for in the Government Code. Section 815 provides in essence that except as otherwise provided by statute a public entity is not liable for injuries caused by its conduct or that of its employees. In contrast, section 820, subdivision (a), provides: “Except as otherwise provided by statute (including Section 820.2) a public employee is liable for injury caused by his act or omission to the same extent as a private person.” Section 818 setting forth the immunity for punitive damages expressly pertains only to public entities. There is no corresponding immunity provision pertaining to public employees. Thus, a public employee may be liable for punitive damages like a private person but unlike a public entity which is specifically immune. (*Runyon v. Superior Court* (1986) 187 Cal.App.3d 878, 881.) Moving Defendants cite to no authority to support its assertion. DENIED.

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CASE #	CASE NAME	HEARING NAME
CVPS2600637	WAYNE VS UBER TECHNOLOGIES, INC.	HEARING ON MOTION TO COMPEL ARBITRATION BY UBER TECHNOLOGIES, INC.

Tentative Ruling: No tentative ruling. Hearing will be conducted on Tuesday, September 22, 2026 at 8:30 a.m. in Department PS2.